

		the same exposure. Defendant Lilly additionally argues that the addition of the claim would expand the issues because the claim requires a showing of criminal intent. <i>Siry Investment, L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361–362 (“[W]e observe that not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will amount to a theft. To prove theft, a plaintiff must establish criminal intent on the part of the defendant beyond “mere proof of nonperformance or actual falsity.”). Further to this, Defendant Lilly contends that “targeted depositions on Lilley’s knowledge and intent, document discovery directed to state of mind, and potentially expert analysis” will be required. Why Defendant Lilly would need to conduct discovery as to his own intent, and what information he would seek to discover, is unclear. Defendant Lilly does not identify the specific discovery he thinks he needs to conduct. He does not explain what information or evidence he would be seeking to discover. Defendant Lilly also points to his motion for summary judgment and the law regarding amendment in the face of an MSJ to assert prejudice because Plaintiff is trying to create a “moving target.” <i>Melican v. Regents of University of California</i> (2007) 151 Cal.App.4th 168, 176 “It would be patently unfair to allow plaintiffs to defeat UCI’s summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.”). But the case law cited by Defendant Lilly is not applicable here. Those cases involve motions to amend filed <i>after</i> the motion for summary judgment. Here, the motion to amend was filed first. Knowing that it was on file and would be heard first, Defendant Lilly chose to file his motion for summary judgment or adjudication. The results of that choice do not amount to Plaintiff “moving the target” to avoid summary judgment. Finally, Defendant Lilly argues the proposed additional claims cannot be sustained. Again, this is not normally considered in deciding whether leave to amend should be granted. <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048. Denial of leave to amend has been upheld where the proposed amendment was clearly futile. <i>Foxborough v Van Atta</i> (1994) 26 Cal.App.4th 217, 230 (affirming denial of leave to amend where statute of limitations barred claim); <i>Yee v. Mobilehome Park Rental Review Bd.</i> (1998) 62 Cal.App.4th 1409, 1429 (affirming denial of leave to amend, among other grounds, because claim barred by res judicata or statute of limitations). But on the current record it is not clear that the proposed amendments are futile. Accordingly, the motion to amend is granted. The trial in this matter is continued from September 14, 2026 to November 30, 2026 at 9:00 a.m. in Department C27. Defendant Lilley’s motion for summary judgment/adjudication set for July 20, 2026 is vacated. Should Defendant Lilley wish to file a MSJ/MSA based on the Third Amended Complaint, the Court will reserve the date of October 26, 2026 for the MSJ/MSA to be heard by the Court. However, Defendant Lilley must make it known to this Court at the hearing on this matter that Defendant Lilley intends of filing a timely MSJ/MSA to the Third Amended Complaint. Moving party is ordered to give notice of this ruling.
104	2024-01385241	Motion to Seal The unopposed motion by Defendant American Honda Motor Company, Inc. (“Defendant”)

	Alvarez vs. American Honda Motor Company, Inc.	for an order sealing three exhibits submitted in support of Defendant’s motion for summary adjudication, Exhibit E, Exhibit G-1, and Exhibit G-2, is granted. As an initial matter, the Court notes Defendant’s proof of service for the notice and moving papers did not include the server’s email address. (Code Civ. Proc., § 1013b, subd. (b)(1).) The Court reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. Defendant has shown that Exhibits E, G-1, and G-2 should be sealed. (Cal. Rules of Ct., Rules 2.550 (d) and 2.551(b)(1); Memorandum, 3:5-9, 4:1-5:4; Tolmasoff Decl., ¶¶ 2-5 [Exhibits E, G-1, and G-2 contain Defendant’s confidential, proprietary, and trade-secret information, including internal warranty system data and service procedures, which are maintained as confidential by Honda in the ordinary course of business; The documents contain documents that are not publicly disseminated; The competitively sensitive information constitutes an overriding interest that overcomes the presumption of public access; Disclosure would expose internal operation processes and technical procedures not shared outside the company; Defendant will be prejudiced if the order is not granted because confidential proprietary warranty data and internal service operations would become publicly accessible; The proposed sealing is narrowly tailored to three exhibits; Nearly the entire contents of the documents consist of sensitive information; Defendant limited the requested sealing to these three documents which contain confidential corporate information; No less restrictive means exist].) Accordingly, the unopposed motion is granted. The unredacted exhibits lodged with the Court are ordered filed under seal in this matter. Defendant is ordered to give notice.
105	2025-01526008 Budden vs. Tow Masters, Inc.	1. Motion to Be Relieved as Counsel of Record 2. Case Management Conference The unopposed motion by Andrew J. Mallon and Joshua S. Hopps of Wood, Smith, Henning & Berman LLP (“Counsel”), attorney of record for Defendant Tow Masters, Inc. (“Tow Masters”) for an order permitting Counsel to be relieved as attorney of record for Tow Masters in this action is granted. Counsel has substantially complied with CRC Rule 3.1362. The case management conference is continued to September 14, 2026 at 2:00 p.m. in Department C27. Counsel is ordered to file a revised order including all future dates scheduled in this matter. Upon the signing of the revised order, Counsel shall serve the signed revised order on Tow Masters and all parties who have appeared. The revised order granting relief shall be effective when proof of service of the signed revised order on Tow Masters and all parties is filed with the Court. The Court reminds Tow Masters that an entity must be represented in court by a licensed attorney. It cannot represent itself in court, either in pro per or through an officer or agent who is not an attorney. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898.) Counsel is ordered to give Tow Masters notice of such, with proof of service filed herein. Counsel is ordered to give notice of the ruling.